

HB 3230 -- ZONING REGULATIONS FOR MANUFACTURED HOUSING

SPONSOR: Hardwick

COMMITTEE ACTION: Voted "Do Pass" by the Standing Committee on Commerce by a vote of 8 to 0. Voted "Do Pass" by the Standing Committee on Rules-Administrative by a vote of 11 to 0.

This bill prohibits a local government from adopting or enforcing a zoning ordinance or land use regulation that bans manufactured homes where other single-family housing is permitted, imposes requirements on manufactured homes that are more restrictive than other on-site build homes, limits the replacement of existing manufactured homes, requires permits for manufactured homes that aren't required for comparable site-built homes, or requires a perimeter foundation system for a manufactured home that is incompatible with the structural design of the home.

The bill allows local governments to adopt and enforce compatibility standards governing the placement of manufactured homes in residential zones, so long as they are not more stringent than standards applied to other single-family residential construction in the same zone. The bill also does not prohibit additional requirements related to historic properties, homeowners associations, or covenants on private land.

This bill contains an emergency clause.

PROPOSERS: Supporters say that this bill creates guidelines for how municipalities can regulate manufactured homes which will help with the housing shortage around the state because manufactured homes are a cheaper option for most people. This bill does not interfere with HOA contracts or fire code regulations.

Testifying in person for the bill were Representative Hardwick; and Daniel Stone Sr.

OPPOSERS: There was no opposition voiced to the committee.

OTHERS: Others testifying on the bill say that this is a good way to increase the availability of affordable housing in the state. However, there was concern expressed that this bill may preempt municipal laws and ordinances by requiring municipalities to allow manufactured homes anywhere that does not have an HOA and does not violate any fire codes.

Testifying in person on the bill was Laura Holloway, Missouri Municipal League.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.